

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Bakerly, LLC

Complainant,

v.

Docket No. 22-17

Seafrigo USA, Inc.

Respondent.

COMPLAINANT’S MOTION FOR PROTECTIVE ORDER

Pursuant to Rule 502.141(j), Complainant files this Motion for Protective Order for good cause to forbid the untimely-served deposition notices by Respondent. 46 C.F.R. § 502.141(j).

Good cause exists to forbid the depositions because Respondent failed to serve the notices for deposition on or before the last day to serve discovery requests, and Respondent failed to provide reasonable notice for the depositions.

The September 15, 2022 Scheduling Order set December 20, 2022 as the last day to serve discovery requests and set January 19, 2023 as the close of discovery. On January 12, 2023, the discovery deadlines were extended sixty days: setting February 21, 2023 as the last day to serve discovery requests¹ and March 20, 2023 as the close of discovery. On March 22, 2023, in the Amended Scheduling Order, the ALJ denied the requested sixty-day extension and extended the close of discovery to April 3, 2023. This “short extension” was granted “to complete whatever discovery is left.” (Amended Scheduling Order at 2.)

¹ Complainant served its second—and last—discovery requests on February 16, 2023, and Respondent sent its second set of discovery requests on February 23, 2023.

A. The period for new discovery requests is closed.

Without any previous discussion of depositions, Respondent sent three deposition notices on March 28, 2023 for depositions on April 3, 2023 (attached as Exhibit A). These depositions are not permitted because the last day to serve discovery requests was thirty-five days before the deposition notices were sent. Further, the short extension to April 3, 2023 was only intended to complete the discovery requests that were already outstanding. The March 22, 2023 Order outlined that the extension was only “to complete whatever discovery is left.”

B. Alternatively, four days is not reasonable notice, and an extension would be required to proceed with depositions.

In the alternative, if the ALJ permits these late-stage depositions to take place, Complainant requests a fourteen-day notice period. The deposition notices only provided four days of notice. This violated Rule 502.143(b)(1) which requires *reasonable* written notice. Although the F.M.C. Rules do not outline a quantity of days as “reasonable,” various federal district courts have: In the Eastern District of Virginia, notice of less than eleven days is unreasonable, and in the District of D.C. less than seven is unreasonable and fourteen days are required for a party that files a protective order. E.D. Va. LR 30(H); D.D.C. LR 30.1. Thus, Complainant requests fourteen days due to the filing of this protective order.

If the depositions are to be held, an extension of the case deadlines is also necessary in order to prepare for depositions, finalize discovery responses, hold the depositions, and complete the transcripts all before the parties turn to brief writing. Thus, we would request an appropriate extension of all case deadlines, if the judge permits the depositions.

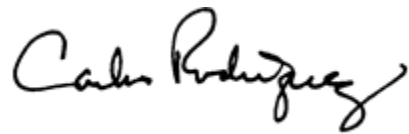
Further, Bakerly would accept these depositions at this late date, only to the extent that Bakerly would be permitted the same right to hold comparable depositions of select Seafrigo managers and employees.

On March 29, 2023, counsel to both parties met and conferred. Counsel for Respondent indicated it would oppose the motion for protective order but would not withdraw the notices for deposition.

Based on the foregoing, Complainant respectfully requests the ALJ grant the motion for protective order to forbid these depositions for good cause shown. In the alternative, Complainant requests that the ALJ grant the extensions as outlined above, including allowing Bakerly the same opportunity to conduct depositions of selected Seafrigo management and employees.

Dated: March 29, 2023

Respectfully Submitted:

A handwritten signature in black ink, appearing to read "Carlos Rodriguez", followed by a vertical line.

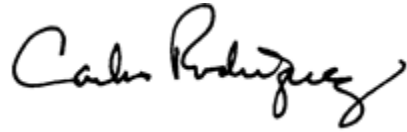
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Counsel for Complainant, Bakerly LLC

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 29th day of March 2023, a true and current copy of the foregoing Motion was filed via electronic mail with the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel:

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A handwritten signature in black ink, reading "Carlos Rodriguez", is positioned above a horizontal line. A vertical line is to the right of the signature.

Carlos Rodriguez
Counsel for Complainant, Bakerly LLC